

CALIFORNIA

AS IT IS, AND AS IT MAY BE

OR

A GUIDE TO THE GOLD REGION

F. P. WIERZBICKI

1849

CALIFORNIA

AS IT IS, AND AS IT MAY BE

OR

A GUIDE TO THE GOLD REGION

F. P. WIERZBICKI

1849

pgdp.net

The Project Gutenberg eBook of California as it is, and as it may be

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: California as it is, and as it may be
or, A guide to the gold region

Author: Felix Paul Wierzbicki

Release date: February 4, 2015 [eBook #48156]
Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/48156

Credits: Produced by Jan-Fabian Humann, Charlie Howard, and the
Online Distributed Proofreading Team at
<http://www.pgdp.net>
(This file was produced from images generously made
available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK CALIFORNIA
AS IT IS, AND AS IT MAY BE ***

Transcriber's note

Table of Contents created by Transcriber and placed into the
Public Domain.

CONTENTS

Preface	<u>3</u>
The Country and Its Resources	<u>5</u>
The Gold Region	<u>24</u>
Advice to the Miner	<u>33</u>
Towns of California, and What Relates to Them	<u>49</u>
The Harbor of San Francisco	<u>55</u>
Directions for Entering the Harbor of San Francisco	<u>55</u>
Regulations for the Harbor and Port of San Francisco	<u>56</u>
The Towns of California (<i>continued</i>)	<u>57</u>
Errata	<u>61</u>

CALIFORNIA

AS IT IS, AND AS IT MAY BE,

OR,

A GUIDE TO THE GOLD REGION.

BY F. P. WIERZBICKI, M. D.

SAN FRANCISCO, CALIFORNIA.

FIRST EDITION.

**

SAN FRANCISCO:

PRINTED BY WASHINGTON BARTLETT,

NO. 8, CLAY STREET.

1849.

COPY RIGHT SECURED.



PREFACE.

The residence of several years in the country together with his familiarity with its whole extent, not excluding the Gold Region in which he passed more than four months rambling over its mountains, and even crossing the Sierra Nevada to the verge of the great Western Desert, give the writer of these pages a degree of confidence in the belief that by presenting this work to the public, notwithstanding the numerous books that have already appeared upon the subject, he supplies the desideratum so much needed at this moment, and renders justice to California that of late suffered a little in her reputation by the indiscretion of some of her friends.

THE AUTHOR.

SAN FRANCISCO, SEPT. 30, 1849.

CALIFORNIA.



THE COUNTRY AND ITS RESOURCES.

The country lying between the *Sierra Nevada* and the Pacific Ocean, and bounded at the north, though somewhat indefinitely, by the Oregon Territory, and at the South by the Lower California, confined by the late treaty of the two neighboring Republics to the line three miles south of San Diego, is known as Upper California, a country now engrossing the attention of the civilized world with its future importance. There is no other instance known in history where a country just emerging so to say, from obscurity, immediately acquired such complicated and multifarious relations, not only to the nation of whose territory it is only a small portion, but to the whole civilized world, as California has. In view of these various relations, we propose here to consider the subject of Upper California.

Before California can answer all those expectations, the realization of which the world with good reason looks for, an increase of population must be secured for her. To effect which it will not be very difficult, if to its natural advantages, the government of the Union will add its efforts to promote by every legislative and administrative measure the influx of new settlers. But in all its proceedings, liberality should be its motto, and none of that miserly policy that is afraid of losing an acre from its lands or a dollar from its treasury.

California holds in its bosom resources that no other country can boast of comprised in so small a territory—its mineral wealth, its agricultural capacity, its geographical position, conspire to make it in time one of the most favored lands. And it will lie in the power of the government either to accelerate or retard the unfolding of its future importance. When considered in point of mineral productions, if allowed to be developed by capitalists, California is capable of becoming an important centre of the commerce of the Pacific. Here we find in the neighborhood of the Clear Lake, about a hundred and twenty-five miles north of Sonoma, Lead, Copper, Sulphur and Saltpetre; on the South side of San Francisco Bay, Silver-mines have been found in the vicinity of Pueblo de San Jose; Quicksilver mines which are

pronounced to be richer than those of Spain, are already being worked to a great profit in the same region; Coal strata have been also found in the coast range of mountains near Santa Cruz, in the neighborhood of the Mission of San Luis Obispo, and near San Diego. California Coal seems to be in the intermediate state between the anthracite and the bituminous; it is not as hard as the former nor so soft as the latter; it burns more easily than the first, and does not give out so smoky and unpleasant a flame as the second; it ignites easily and burns with a very pleasant flame without much smoke. Iron is scattered through the mountains of the country, and we have no doubt that a workable mine of it will before long be discovered. We mention not the gold washings that are being worked so successfully at present, for as respects their duration and the developement of the industry of the country, they scarcely deserve the attention of the economist be they ever so rich; as all other mines are more beneficent in their influence to the progress of a country than gold mines. These will become the means of advancing the prosperity of the country only when a regular system of mining by sinking shafts into the rocks shall commence, which it is to be hoped will be done ere long.

The labor expended in working these various mines would give a firm support to the agriculture of the country, which at this day is totally neglected. There is no country, probably, where the soil is so grateful to the hand that cultivates it. There is almost no plant, grain, or fruit that cannot be raised here. Rye grows wild on the skirts of the gold region towards the *Sierra Nevada*; oats cover completely the coast range of the mountains; wheat and corn grow luxuriantly on all the plains, notwithstanding it rains only in the winter season; potatoes, onions and every other kind of garden vegetables with very little care grow to a very large size and of excellent flavor. Some of these vegetables can be kept growing all the year round, such as onions, peas, and some others. Every description of fruit trees seem to be natural to the soil, for they attain here a great perfection. The apple, the peach, the pear, the apricot, the fig, the cherry, the plum, the grape, the pomegranate, the citron, the orange, the olive, the currant, the gooseberry and various other berries are found here either cultivated or in a wild state. The inhabitants of the country have not done much towards the culture of any fruit trees or shrubs; and that is the reason the quantity of any fruit is very limited, when compared with the wants of the population and the capacities of the soil. Knowledge and industry with very little exertion

would increase the quantity not only to supply the wants of the country but even to a super-abundance. The pear and the olive seem to have been the favorite fruit with the Priests of the Missions, as they have raised them in large quantities and of excellent quality. The California olive is among the largest known, and in flavor surpasses that of France; the varieties of the pear are numerous and delicious in quality. The grape vine grows throughout the country, from the extreme north down to San Diego. Excellent grape is produced at Sonoma, at the Mission of San Jose, and some other points. The best however, or where it was made the best use of, is that of the Pueblo de los Angeles. The wine produced there by several vine growers is of excellent quality; in the opinion of many judges in the matter, it is superior to any wine that Spain or Portugal can produce. Its color, its flavor and its strength are *sui generis*; it wants only to be known to be sought after by *amateurs*; and there is no doubt but its culture and the exportation of it will extend rapidly with the increase of commerce on this coast. The most celebrated wine at present is that made by M. Vignes, a French gentleman who settled in the country some fifteen years ago and was the first to plant a vineyard in this region. There are two qualities of it, red and white; the latter is more inviting than the former by the very beauty of its color. The growing of the grape vine and of the olive may be made a very profitable branch of foreign commerce, if there were men to attend to the business; settlers from the South of Europe could develop this branch of industry to great advantage, and could not fail to make themselves opulent. There are in the country appropriate spots for the culture of rice and the sugar cane: the former could be easily raised on the overflowed lands of the San Joaquin and on the creeks of San Francisco Bay. Cotton even might be raised here, but we think one could employ his time more profitably in some other business, as cotton is so cheap elsewhere. Hemp grows wild in different parts of the country.

There is yet another branch of industry at which we have not heretofore so much as hinted, but which would prove for California one of the richest mines of which she could boast; we mean the raising of sheep. The climate of the country and much of its surface are admirably adapted for the purpose; in fact, as it proved a source of wealth to New South Wales, it would be equally so to California; a great similarity of climate of the two countries guarantees the result. In this way every portion of the country would be turned to advantage; the mountains now lying barren would be a

grazing ground for the sheep; and the valleys now trodden exclusively by cattle and horses would be given up to the plough, and there would be no more livestock raised than the actual wants of the country require. Merino rams could be easily procured from Oregon, Peru, or even New South Wales, to improve the native breed of the sheep. He who enters upon this business the first will lay the foundation for a colossal fortune which he can realize in a few years.

The face of the country being broken up into mountains and having large valleys separating the two coast ranges of mountains into the sea coast range on the west, and the spurs of the Sierra Nevada on the East, offers an ample ground for the shepherd and agriculturalist. The valleys south of San Francisco Bay lie almost parallel with the sea coast, gradually receding with it in a South-east direction. This gives an opportunity for the North-west winds, which prevail on the coast, to sweep over them, and thus temper the heat of the sun, renovate the air, and carry away over the snowy mountains any *miasmata* that might be suspended in the atmosphere, and which if left undisturbed might prove a prolific source of disease. This accounts for the extreme healthiness of the sea coast of California. The portion of the country that is less salubrious than the rest of it is confined between the Sacramento and the San Joaquin; fevers seem to be dominant there, yet even there people can get acclimated and enjoy good health for years. In point of climate San Francisco and San Diego present a striking contrast. The former being so much exposed to the North-west winds has a very disagreeable temperature; but it is nothing more than disagreeable, as fogs and winds have their periods there; it is however, far from being unhealthy; with ordinary care and prudence, one in a few months gets acclimated, and cannot but enjoy perfect health. Its winter, notwithstanding the rains, is more agreeable than its summer, when fog and chilling winds prevail. This climate extends only the length of the bay; it improves as we recede farther south. On the contrary, in San Diego the climate is most delicious and equable; neither enervating by excessive heat, nor disagreeable on account of Northern blasts. Rains are scanty, yet vegetation is luxuriant wherever the soil is good.

We may observe here in regard to the climate of California in general, that for the sake of health, summer dress should be entirely dispensed with; the nights throughout the coast are cold, and every new comer is more

liable to suffer through neglect of this precaution than even the natives. Woolen dress is never oppressive here, but always beneficial. Strangers, if they suffer, owe their illness to the oversight of this fact, together with the excesses that some of them commit.

The agriculture of a country should be made the basis of every branch of industry and trade; these latter should, so to say, feed the springs of the former. In California every facility is offered to the farmer. The working of the various mines will guarantee him a profitable sale of all his productions. The exterior commerce naturally following the working of mines, will equally contribute its share in favor of the agriculturalist. The American whalers scattered throughout the Pacific Ocean to the number of nearly 700, will come to California for fresh provisions if they have the security that they will run no risk of losing their crews on their arrival there. It will be the duty of the Federal Government, as well as of the local authorities, to devise measures that will give this security to all shipping. The government squadron that will be constantly stationed in the Pacific, will also draw its provisions from California as soon as she shall be able to furnish them, since it will be less expensive to the Government, and more beneficial for the service; for much of the stores that are now shipped round Cape Horn at considerable expense, become unfit for use by the time they are wanted by the Navy.

Such are the unfailing sources from which the labor of the farmer will be liberally paid; but they are not the only ones. Every year will see them expand and always working for the advantage of the agriculturalist. It is not necessary to be gifted with an extraordinary foresight to predict that as soon as the industry and enterprise of the Americans take a fair footing on this soil, the commerce of the country will grow daily; the trade with China, with the Islands of the Pacific, and with the whole western coast of America will be ere many years, in the hands of American citizens resident in California, which will be made a *depot* of the industry of the whole Union. To swell this commercial tide beating against the shores of California comes the railroad that must inevitably be built across the territory of the Union, and whose terminus must be on the Bay of San Francisco. It may take many years before this work will be accomplished, but we have no doubt of its being sooner or later entered upon. We have a particular right to express our faith in the accomplishment of the work, as we were the first, at

least to our knowledge, who, five years ago, prophesied on a public occasion, the union of New York with San Francisco by means of the iron bars laid across the continent. At that time it was more difficult to foresee than it is now, and probably those who then smiled at our enthusiastic visions of the future, will now agree with us that the time is not far removed when the Pacific shore railroad will pass into the facts of history. The accomplishment of this work will appear less difficult when we consider that one half of the proposed railroad is already built—we mean the distance from New York to Natchez. Now, combining all the results of the different branches of industry above spoken of, and which can and will be exercised in this territory whenever there shall be a sufficient number of inhabitants for the work, is it difficult to foresee the part California is to perform in the civilized world? And all this will ultimately turn to the especial benefit of the tiller of the soil. The country can sustain several millions of inhabitants with the greatest ease possible. The apparent drawback upon the agriculture of the country in the eyes of a farmer from the States is the comparative scarcity of timber and water; and he is more disagreeably impressed, if, arriving by land, he beholds, first of all, the extensive plains of the Sacramento.—Should he come from Oregon he feels home-sick, and is willing almost immediately to turn upon his heels for his well wooded home. But the Sacramento plains are not the best representatives of the country; they are good only for a scanty population; the want of an abundant supply of wood and water is only apparent at first sight, and particularly to those whose first idea of farming is to clear away the woods from the land they are to settle upon. The same time which the farmer in Oregon devotes to the clearing of land can be, if necessary, devoted to looking for and securing a lasting spring of water that may answer for all farming purposes—a thing very easily done, if one possesses a little knowledge and industry. We can say safely, that there is hardly a spot in California on which water cannot be found if looked for; although frequently on the surface there may be no signs of it, yet the ground, notwithstanding this, is so percolated with it that it needs, comparatively speaking, but little labor to strike upon a lasting spring. We doubt not that those who have means would find it profitable to sink an artesian well, if the land require it, which work would not be very expensive here, because there is never an occasion to go very deep in search of water in California. By what we have said we do not mean to imply that the necessity for these

wells will be felt throughout the country; far from it—there are not only numerous streams in the hills that never dry up, offering fine mill sites, but others that wash the plains can be turned to agricultural purposes with all ease. At one time, when California was under the direction of the Spanish priests, it was like a garden; but the Mexican misrule blasted it like the Northern wind when it breathes upon a budding flower. Those who have not seen such things before, would be surprised at finding wheat and corn, the principal grains that are raised here, growing luxuriantly in plains where there are but scanty rains. We have seen excellent potatoes grow on a slope of a hill in the Bay of Monterey. This is undoubtedly owing to the moisture brought from the sea by winds, nightly dews, and to the fact that the sub-soil is always more or less moist. There is a remarkable advantage in the climate of California for the farmer; the seasons and their peculiarities are so well known that he can count almost with certainty upon the results of his rural labors.

Although timber cannot be found on every spot that is arable, yet we may safely assert that there is a sufficient quantity of it through the country to satisfy all the wants of the inhabitants that are yet to settle here. The coast range of mountains from Oregon down, is quite plentifully wooded; particularly near Botega on the North and Santa Cruz on the South side of the Bay of San Francisco. There are already from six to eight saw-mills in the country, and there is yet room for more. In fact, in our opinion, if the American farmer get rid of his *stereotyped* notions of farming, and using his intelligence, adapts himself to the climate and the state of the country, he will reap a golden harvest much more abundant than anywhere else; and even we would go farther and assert that he will do so with much less labor than in any of the States.

In connexion with the farming interest we cannot overlook the excellent state of natural roads throughout the country. A good road enables the farmer to dispose of his produce and greatly diminishes his rural labors. There are but a few, if any, countries that can boast of so good natural roads as California. From San Francisco down to San Diego, a carriage may pass along the valleys almost upon a beaten track, although everything in relation to roads is at present completely neglected. In Spanish times they were in a better state, for the Priests then used to make their journeys to San

Diego in carriages all along the coast. A very little labor would make them even now all that roads need be.

Not less important to the farming interest, as to every interest in the country, is a railroad uniting the States on the East side of the Rocky Mountains with the Pacific shores. The advantages of such a National work are numerous, and if the people and the government of the Union understand fully its importance, they will lose no time in undertaking it. The practicability of the work is not to be questioned; the country through which it *should* pass, and the energy and enterprise of the American citizens are sufficient guarantees for its feasibility. The immense advantages in a commercial point of view to be derived from such an enterprise are indisputable. The trade of China, of the Islands of the Pacific and the whole Western coast of America, will be brought so much nearer the Union that it will not fail to pour immense wealth into her lap. She will become really a formidable commercial rival of Great Britain, and a common carrier to the whole of Europe. It will bind the whole Union with more indissoluble ties; the sectional interests of each State will be mingled and merged in the common interest made fast to the Pacific shore. To California individually, such a railroad will be of great consequence, as it will make it a centre of an extensive commerce, and will bring to her a sufficient population to develop all her internal resources.

Once before we have indicated the route for such a railroad, and we will take this opportunity to enforce it upon the public still more, as farther reflection and information upon the subject enables us to do even with more reason than before.

The projected railroad across the continent should start from the Mississippi near the mouth of the Ohio, or at such a point that the navigation will never be liable to be interrupted by ice; thence to the vicinity of the Arkansas; thence along the prairie ridge which separates the waters that flow into the Arkansas from those which flow into the Mississippi and Missouri, to the point where the road passes from Missouri to New Mexico, and by *San Miguel* to *Santa Fe*; thence up the valley of the *Rio del Norte* to the mouth of the *Abaca* creek; thence up the creek to the town of the same name, and thence through a pine forest of low sandy hills ninety miles in length to the *Rio de la Plata*, which is a tributary of the *San Juan*. The latter is a tributary of the *Colorado*. It should cross the *Colorado*

to the Northwest side and proceed along the trail from *Santa Fe* to California to a point between the *Mahahve* river and the *San Bernardino* mountain; thence through about ten miles of low hills to the great valley of the *San Joaquin*; thence down that magnificent and fertile valley, about five hundred miles on a level, to the tide water of the Bay of San Francisco. By this route the road will pass over a dead level of about eight hundred miles at the eastern end, and about five hundred miles at the western; it will have *no mountains to cross*, will be nearly free from snow in all parts, will afford, for New Mexico, an outlet to both Oceans, and terminate at the best part of the western coast of America.

The point of the terminus of the railroad is by an accident, so to speak, already selected with a good deal of discernment; it is called the New York of the Pacific, situated at the upper part of the Bay of San Francisco, known here as Suisun Bay. An enterprising company, at the head of which is Col. Stevenson, have bought a tract of land at the mouth of the *San Joaquin*, where it mingles its waters with those of the Sacramento, and are already building a town. Its situation for the terminus of the railroad is very advantageous; it is level; has abundance of land to expand upon; it is in the neighborhood of grazing farms; its climate is healthy, as is the rest of the south bank of the *San Joaquin*; well-water can be found there within a few feet of the surface; the river is deep enough to admit large vessels close to the shore, and its water here is fresh and sweet; ships can water here with the greatest facility. The vessels going up the Sacramento pass within sight of it. It is a spot very judiciously selected for a town, and we have no doubt it will grow, as the proprietors spare no efforts to make it acceptable to new settlers.

But the railroad should not stop here; it should branch away along the shore to the point where now the town of *Martinez* is being laid out,—a very pretty site facing the straits of Carquinez; thence it should strike the valley of San Jose—one of the richest spots in California and which would support, a million of industrious inhabitants—and following along the coast terminate at San Diego.

The advantages of uniting the two opposite points of the country by means of a railroad, will not only help its speedy settlement—an important consideration in many respects—but will be equal to gaining a free port on the coast of Mexico for the exclusive benefit of American citizens. By the

means of *Santa Fe* and *San Diego*, should the railroad be constructed as indicated above, the Union will have the command of the largest share of the Mexican trade.

So far as we know, and we have taken considerable pains to ascertain the fact, we may assert that there is no better route for a railroad from the States to California. No other passage through the *Sierra Nevada* can be found but the one we have indicated. There is none to be found between the heads of the Sacramento and San Joaquin rivers. We have rambled over that region, and the conformation of the country gives us confidence in saying that it is not at all favorable to such a passage; and besides, supposing that such a passage could be found, a single fact in relation to the subject will destroy all hopes of effecting the object; we mean that from the line where the auriferous region terminates, to the very ridge of the *Sierra Nevada*—the region of granite, occasional limestone, and Masses of sand-stone—snow lies for six months, accompanied with intense cold; the depressions of the mountains are filled up with it to such a degree that the tops of the highest trees only peep through it as if they were but so many insignificant bushes. In fine, the snow levels the tops of the mountains into a continuous plain, as it were, through which the melting sun alone, by degrees, can effect a passage towards the end of June or the beginning of July. This is the time when the Snowy Mountains can be traversed. The government a few weeks ago sent an expedition in search of such a passage through the Northern portion of the gold region about the head of the Sacramento river. We feel sure that the attempt will be fruitless.

It would be well, on the part of the government, to look for passages for military roads leading from the States to the Pacific, or to take advantage of those already discovered. There ought to be at least three such roads; one leading to Oregon, another to the north of California, striking at the head of the Bear Creek, and the third taking a southerly course to San Diego. These roads would offer great facilities to the emigrants from the States, who never should take the same track in large companies, on account of the scantiness of grass. The military posts thus established would keep in check the roving tribes of Indians, offering security to the emigrants. There is already, considering the character of the country through which it passes, a very good road made by the renowned mountaineer, Greenwood, leading by the head of *Yuba* and striking at the *Bear Creek* valley, till it reaches

Johnson's farm on the confines of the plains. This road may be made better and much shorter, if it should follow from the ridge at the head of Bear Creek valley, striking at the head of the north fork of the same creek, and following it along a little towards the Yuba side, then again turning towards the Bear Creek, and continuing so till the hills acquire a more confused outline, and finally striking Johnson's farm. By this route the journey would be shortened several days, and the difficult descent at the junction of the North Fork of the Bear Creek with the same creek would be avoided.

The military roads thus disposed would give a security to the settlements from horse thieving Indians, who now frequently make incursions upon them, carrying away herds of horses and mules, and sometimes even pick up an unaware traveller on his journey. The present disposition of the troops is of no real service to the country. They are stationed in comfortable and quiet quarters in towns where they are the least wanted, and the thieving Indians are allowed to make nightly excursions into the settlements, and to infest the roads. Under the Spanish government there were different military posts established in the country, and the troops in detachments were made constantly to traverse the country in different directions from post to post, thus keeping always on the road, they kept in check the predatory Indians, who, by the way, are neither very brave nor formidable in numbers. According to our notions, soldiers are not kept for the purpose of meddling with politics and living always in towns; they should perform the service that the country may need at their hands, although that service may lead them into camp life.

Since the occupation of the country by the American forces, the inhabitants complained bitterly of the frequent depredations of the horse thieving Indians, but the powers that be listened with indifference to them, and offered no effective remedy for the evil, and it does not seem probable that the present military authorities will do any better for the country, judging from the disposition they have made of the forces. The inhabitants, if they can combine, will have to take the subject into their own hands, for it is even doubtful whether the highest authorities of the Union will deign to look into the wants of the *benighted ranchero* of California. However, we will not lay the faults of the past government at the door of the present one; we will hope still a while longer for the best at its hands.

It is of no small importance to those who wish to settle in California to know the state of landed property in the country; it will be but following their wishes if we offer a few pertinent remarks upon the subject, which we will do after a few preliminaries. A line drawn from the coast eastward that would pass at the southern edge of the Clear-lake valley; then another that would go north and south, intersecting the former, touching the western side of the auriferous region, and following it down to the frontier line south of San Diego, may be considered as enclosing the inhabited portions of the country. There is very little public land within the above described lines, as it is almost entirely occupied by proprietors or covered by titles.

The government, therefore, cannot expect to find much in the settled portion of the country that should come under its immediate control in the shape of public lands. The land on the north and east sides of the imaginary lines we drew, is either unoccupied or inhabited by rambling tribes of Indians. We may say that the whole auriferous region is occupied by Indians in its whole extent, and the oak is the frontier line of the Indian dominions; beyond that line the undisputed possessions of the pine and the bear commence. The wild Indians of California are probably the most inferior race of all the Aborigines of the continent; they lack energy and spirit; they live on roots, acorns, pine-nuts, insects, and occasionally on game, when they can catch it, or on horse or mule flesh when they can steal it. North of the Bay of San Francisco, and between the Sacramento and San Joaquin rivers, some of the Indians live in the families of the settlers, or near their farms, working for their subsistence and an occasional blanket. These are called in Spanish, very properly, *Indios manzos*—(tame Indians.) The others live in the woods, rambling frequently from spot to spot and sustaining themselves in the way we have already mentioned.

On the south side of the Bay of San Francisco and the San Joaquin rivers, the Indians are more numerous, and particularly as we go further south they are more spirited and enterprising in thieving than those of the north; and those particularly on the southern frontier of California are brave and formidable. The *Indios manzos* are sufficiently numerous in the settlements here, and some thousands of them were living at the Missions. The wild Indians in this portion of the country occupy the mountains back of the settlements; amongst them are now found in large numbers, those who, after the Mexican government succeeded in ruining the Missions, fled

into the mountains and resumed their former life. In these mountains are found numerous beautiful valleys, well watered and full of game of every description; the climate is said to be very benign. It would be very difficult to estimate accurately the number of Indians, both tame and wild, in the country; we therefore will not offer any supposition of our own on the subject.

The government at Washington will find itself somewhat embarrassed in selecting a course of conduct with these Indians; they have been accustomed to a different system of management than that of the United States. They cannot be removed, in justice and humanity, from the country, for there is no place to remove them to where they could subsist; it would be dooming them to destruction; and it would be more humane to butcher them outright than expose them to a slow but sure extinction. The system that the Spanish government pursued with them seems to suit, at least the Indians of this country, better than the American way. It acknowledged no rights in them to the soil, but it sends out missionaries to gather them into the folds of the church, and to make settlements of them under the directions of the Priests. In our opinion, the only safe and humane mode of bringing them within the pale of civilization, would be by establishing Protestant Missions, if you like,—but modeled somewhat after the Spanish fashion,—in those mountains on the spots fit for agriculture and grazing, where they could be brought to an industrious and peaceable life by persuasion, which could be easily effected, as they are sufficiently docile, and in this manner their services might be secured for the country as heretofore; they are, when engaged with settlers, those who generally perform the labors of the field or about the house, without losing, however, their freedom. In these occupations they seem quite contented, if they have enough meat to eat, which of course never fails in California. There can be in California no other but free labor hereafter, as it has been heretofore. The new settlers, as well as the old ones, are extremely opposed to any other. It is in vain that the gentlemen from the Southern States of the Union, in their dreaming hours, try, or have tried, to introduce their black institutions through the *legal doors*, as they think, of Congress into the territory of California. Whether Congress may please, in its wisdom, to think that it has a right to introduce slavery into its new territories or not, it matters not for California; she cares very little what Congress may do in forgetfulness of its duty towards her, but she is resolved to resist any such measure; and

whoever entertains the question for a moment, either in the legislative halls or before the public, shows his ignorance of the disposition and unanimous determination of the inhabitants of California. The slave-holder who would come here with his legalized chattles, would find his sojourn very uncomfortable, and would lose completely on his speculation. The inhabitants of this country feel already indignant at the intrigues of the Southern gentlemen who prevented, in the last Congress, the passage of necessary laws for California. We may state here once for all, that if Congress wish to govern this country, it must be just and paternal in its care of it; if it pass any laws it must not pass them in ignorance of the state of things in California; it must not imagine that this country is only inhabited by semi-barbarous tribes that can be co-erced into obedience. The inhabitants are very easily governed by justice, and there are no more loyal citizens in the whole Union than the California settlers; but they think they understand their rights, and would not be downtrodden by any legislative bodies. At this moment the larger portion of them are Europeans and Americans, and the rest are Mexicans either born in California or in other States of that Republic. It is the interest of the Union to keep them in good humor, and consolidate the new territories by just and liberal laws.

Judging from the specimens of the laws proposed in Congress for the benefit of California, and which, thanks to the knowledge, wisdom and eloquence of Hon. T. H. Benton, Senator from Missouri, failed to go into effect, we fear that that honorable body is in danger of running on shoals in its legislative measures relating to this country, and particularly in laws affecting landed property. The gentlemen in Congress apply their American ideas of the value of landed property to a country that has been, so to say, born and raised under Spanish system of laws, and is totally different from any of the States in its domestic and civil arrangements. It would be impossible by any legislative act to change suddenly the character of former civil institutions of the country without committing outrageous injustice to its inhabitants, and even running the risk of raising their opposition. California, as well as New Mexico, comes into the Union as a full-grown man, whose habits are already formed, connects himself by ties of matrimony with another family; his new relations, if they be wise, do not wish him to be like themselves in every particular, but gradually by gentle influences, try to assimilate him to themselves, in which, in the long run, they will succeed. This is precisely the position of the government of the

Union in regard to these newly acquired territories. To assimilate them by degrees without doing violence or injustice to their habits and possessions, should be the rule of a wise legislation. They are not to be punished for what, in the eyes of American legislators, appears to be defective in the Spanish or Mexican laws; if so, it would be doing violence to justice, to the laws of nations, and to the very late treaty by which the American government bound itself to respect their rights of property precisely as the Mexican government would have done or did do. The plain meaning of this is that the government of the United States is bound to recognize and legalize after its fashion to suit its system of laws, the present possessions of the Californians as it finds them, and has no right to go behind the fact of actual possession and scrutinize and invalidate them. The Mexican government has left them so, as we find them, and if it had continued its sway in these countries, there is no possible doubt but it would not have disturbed them. These people who were brought up to tend their cattle on a large surface of land, as their grazing farms are, without any knowledge of any other mode of getting a living, if cut down to the American idea of a farm, of a hundred and eighty acres, or supposing even a section of 640 acres, would be reduced to beggary, nay, worse, to servitude. Would such a step be creditable to an enlightened, Christian nation like the United States? Tending cattle is their only occupation and only knowledge; it will take some time before they be trained to a different mode of life. The Spanish and Mexican law does not know a fee-simple title,—in the meaning of the U. S. laws it is a grant of perpetual lease, on some conditions. To suit its own practice, the American government should recognize the titles as it finds them in the country by giving the proprietors a fee-simple title, after its own fashion, on the top of the former one by which the land was held.

The Spanish and Mexican governments were liberal in giving facilities to acquire land, particularly in California. It was a common practice of the Mexican government that when a foreigner married a native he was recognized as a citizen, and by applying, could obtain a grant of land for a grazing farm of from a league to four leagues, or sometimes even more. As a general rule, the largest grazing farm that could have been granted under Mexican government, consisted of eleven leagues; there are, however, individuals that possess as many as thirty and forty leagues of land. Such large possessions are open to suspicion in regard to their being legal possessions, and into such the American government may inquire with more

justice, as they are larger than even the necessities of California farmer's life could require. But small proprietors cannot have more than is absolutely necessary to their maintenance.

The landed possessions in California may be arranged into three categories, which sprang very naturally from the system of the colonization of the country. There are Mission lands, *Pueblo* lands and *ranchos*, as they are called here, but in better Spanish they would be called *haciendas*, and in plain English, grazing farmlands of private individuals.

The settlement of California was owing to the will of a pious Countess in Mexico, who left an immense fortune to christianize the heathen inhabitants of this country. About the year of 1670, an expedition, led by a missionary priest, and escorted by a company of soldiers and settlers, landed on the shores of California. The first attempts at colonizing the country were not successful, but by perseverance in repeated efforts the Spaniards at last succeeded in getting a foot-hold in this land. They gathered Indians about them, christianized them after their fashion, and made them *manzos*; soon, with their labor, Mission buildings were erected, farms put in order, cattle raised, and the Indians were instructed in various handicrafts. Finally, in course of time, through the whole length of the land, Missions were planted, and flourished; the Priests grew fat and rich, and the Indians became tame and industrious, and were well taken care of. The country smiled with abundance and the people were happy. Soon, settlers came into the country and planted themselves, very naturally, near the Missions, on which, at first, they depended for their worldly goods; but by degrees they sprung into *Pueblos*, viz. towns. These towns had lands allotted to them by leagues, which were to be used in common by all the inhabitants for their cattle; or if any of them wished to till a piece of land, by an application to the *alcalde*, if there were no objections by the inhabitants, he received a permit from the judge so to do, and as long as he or his heirs occupied it, no body had a right to disturb them. In this way it followed that the inhabitants of towns acquired small portions of land for their houses and tillage, while the rest of the town land was used in common for grazing. Under this arrangement of town property there was always enough land for all new settlers that might come to inhabit these *Pueblos*. This manner of disposing of town land, sanctioned by Mexican law, served as a precedent to the town authorities of San Francisco, Pueblo de San Jose, Santa Cruz

and Monterey, when they, in 1847, disposed of a portion of the land belonging to those respective towns, giving perpetual leases to their possessors. This measure was particularly favorable to foreigners recently arrived in the country, as thus they were enabled to buy the rights of the natives who were not disposed to put much value upon so small parcels of land, and thereby the American interest was much promoted.

The land of the *ranchos* was always either a royal grant of Spain or of the supreme government of Mexico, or latterly of the Governor of California; all these grants practically had the same effect; the possessor of the tract of land thus granted was always in the full enjoyment of his rights and privileges, and no authority could disturb him in his possessions. As the country was frequently disturbed by revolutions, when it was not uncommon for one of the contending parties to burn up or carry away or destroy the archives of a town or even of the country, the land proprietors were not molested in their possessions, although they could not show their property enregistered in the records. Besides the officers of the Mexican government being proverbially negligent of their duties, may not have paid sufficient attention to proper order in these matters. Under such circumstances it would not be surprising if some proprietors should find their property unregistered in the archives of the country. Whatever land is left that has not been disposed of in one of the ways aforesaid, is public land at the disposal of the government.

Such being the disposition of landed property in California, the American government, if it be just and does not wish to create a general disaffection among the people towards itself, must recognize the actual possessors in their possessions by a summary act of legislation recognizing the rights they claim, and to prevent all future difficulties, giving them the fee-simple title to their possessions. The *ranchos* must be acknowledged to be the property of private individuals; the towns must have their rights to their town lands, and the Missions, if they yet have any Indians, ought to retain their tracts of land; or if these exist no longer, the church and public education have the next and best right to them. The lands of the Missions were always considered as Indian lands, or lands devoted for the benefit of the Indians living at the Missions; the priest was but a steward of the Mission. When the riches of the Missions excited the envy of some high persons in office, they set themselves to work to secularize them—and they

succeeded under the Mexican government. The Missions were secularized and circumscribed, and received laymen for their administrators, who superintended and administered them so well that the riches of the Missions fled, their buildings were ruined, their Indians scattered, and at present scarcely their shadow is left; yet they do exist just to remind the world of their former opulence. With the exception of two or three, on all of them there are yet some Indians and a Priest left shorn of their former glory.

In view of the state of landed property of the country, there are three methods by the means of which California may receive an increase to its population without any violence to justice or law being committed. Supposing that the American government has recognized all titles to lands as it found them, then those who have no means of buying land from private individuals should receive liberal donations from the government, or settle in one of the towns where yet town lands exist, and taking advantage of the Mexican law by petitioning the *alcalde*, the settler could get land for his house and tillage, and being more industrious than the natives, he could even grow rich soon and enjoy his possessions as if they were his in fee simple. Those who have means could find tracts of land to buy, either enough only for themselves, or larger than they actually need, to be divided into farms of sufficient size and induce new settlers, by offering them liberal terms, to settle around them; by this arrangement both parties would be gainers.

In our view of the subject, we think the interest of the whole country would induce the government to use all means at its disposal to favor a prompt settlement of California, since the sooner it will be densely settled the sooner its vast resources will be developed, and the sooner the whole Union will reap advantages resulting from such a developement.

THE GOLD REGION.

It is now nearly two years since the discovery of the gold mines in the country, and yet it is for the first time, we can say, that we are able to give a correct account of them, an account that can be relied upon. Heretofore we have heard nothing but Arabian Nights stories about the gold region, drawn, if possible, with more vivid colors than even the Asiatic fancy could conjure up. The whole civilized world became electrified with these surprising stories and set in motion, and every day brings strangers to our shore from the most distant regions of the earth. So far so good; but it may not be so, much longer, when crowds from Europe will begin to pour upon these shores. We feel it our duty, in view of bad consequences that all exaggerations do produce, to contribute our share towards rectifying the impressions that went abroad upon the subject of the mines of this country. Even our government at home had not received an official account from its subordinates here, that represent the truth in its simple garb. In a word, there has been no thorough investigations of the subject; but people on all sides, simple citizens as well as government officers, were content to seize upon a few remarkable cases, that were made more so by passing through many lips, and represent them abroad as of common occurrence. Hence much disappointment followed to hundreds who came here to shovel in, as they thought, the precious dust and be off for their respective homes in the twinkling of an eye.

It is not to be understood that we are going to decry the prunes; no, far from it; we mean to divest them of the mantle which heated fancy cast about them; and represent the simple truth without any poetic ornaments.

On the outset we wish it to be understood that we speak advisedly; we have surveyed, so to speak, the length and breadth of the mines by personal inspection and observation, at a great expense of our time, money and labor, and besides we claim the right to presume somewhat upon the authority of science.

The region which here is known as the gold mines, is closed on the east by the *Sierra Nevada*, or Snowy Mountains, running nearly north and south. Two large streams descend from the Sierra Nevada, one at the north called the Sacramento river, the other on the south known as San Joaquin. These two streams run, as if purposely to the apex of the triangle they enclose, there to meet and make a common and united irruption upon the waters of San Francisco Bay. In this triangle thus formed by these two rivers with the Snowy Mountains are numerous streams; but they all are tributaries either of one or the other of these two rivers; the largest of them are at the north and empty themselves into the Sacramento. The surface of the country, looking westward from the ridge of the Snowy Mountains, which are more than seven thousand feet above the level of the sea, is broken up into ridges, giving direction to the streams that separate, some west by north, others west by south, and gradually growing smaller, they get confused into hills, till finally soften into the plains enclosed by the two above mentioned rivers. The plains, generally speaking, are covered with luxuriant grass skirted along the rivers with the oak.

As these hills rise, vegetation becomes scantier. The range of mountains in which gold is found is distinguished by a uniformity of its vegetable kingdom, which is neither meagre nor very abundant. The oak predominates here, only now and then relieved by several varieties of the pine family. As the gold disappears, the reign of the pine and the granite extends. The depositories of gold look universally more smiling to the beholder than their barren neighbors; the former always have the figure described by the line of beauty, viz: the curved line, be they ever so precipitous as they frequently are; a distinction never to be lost sight of. The extent of these auriferous hills is greater than the public know or imagine, but not in the direction it is supposed. They extend beyond the Sacramento and even San Joaquin, northwest of the former and southwest of the latter, bending round the sea coast. Nay, the same formation, with more or less difference, runs along the whole Pacific shores, till it is lost in the southern portion of the Chilean republic, but gold has not been, nor probably will be found anywhere in equal abundance, as in Upper California. This abundance is much, however, exaggerated by the heated imagination of the public. It is not in the nature of placer gold to be durable long. A very few years when there will be many arms at work, will exhaust it; its origin will be the guarantee of this fact. The breadth of this auriferous region limits

itself within the lines running north and south from forty to sixty miles from the ridge of the Sierra Nevada; and on the west, as the hills begin to soften into the plains.

At some remote period in the history of the globe, the same internal convulsions that heaved up the Sierra Nevada, have also upheaved the auriferous hills, which at first presented a naked surface to the atmospheric changes, by the influences of which, the quartz constantly breaking up, left free the precious metal on its surface. In the progress of time, the same atmospheric influences caused to accumulate on these hills soil which grew deeper with every decay of vegetation till it grew strong enough to support the majestic oak. The freed particles of gold thus became covered by the soil and mixed up with it, and the process of the separation of the metal from the stone was arrested. How gold was injected into the veins of quartz is more than we can say, but the fact that it was so in a liquid state, is beyond question, as we see it adapt itself to the sides of the stone in all imaginable forms, from the finest filament to the largest lump ever found, with a most varied indented surface, filling up, completely, the crack of the stone, always tending to a rounded tear-like appearance, as is the case with all melting substances. When freed, external friction of course modifies its appearance more or less; hence we find it in rivers particularly, in fine flakes, but when it is in larger bulk, it puts on plate-like appearance as if it were hammered out by the hands of an artisan—as really it is by the frequently enormous weight of stones under which it is deposited. Water, that universal carrier, washing the sides of the hills, brought the gold from their surface into the ravines and rivers, to which its own weight facilitated the process.

According to the strength of the current of water, the weight of the particles of gold, and the obstacles in the way, it is deposited in one or another spot, the lighter particles of course floating away the farthest from their original bed. As this process of gold deposition has taken place in some remote period of the earth's existence, hence we find all these deposits, generally speaking, covered with greater or smaller depth of soil, sand, gravel and stones. Strictly speaking, gold does not belong to the rivers—it was washed into them from the hills; hence it is useless to look for gold at the head of these streams, when the neighboring hills are not of the auriferous nature; and we find this fact corroborated by our personal

examination of the heads of the streams of the gold region. The same rule holds good, for the same reasons, in regard to the lower portion of a gold carrying stream, except that it is limited by the fact that light particles of gold may be deposited a considerable distance below their original source.

The mode of deposit being made clear, it will be equally clear that it is not on every spot in this very auriferous region that we must look for gold, which fact experience proves to be true; or at least it is not on every spot that we can find enough of it to make it an object to bestow our labor on it. Hence it equally follows, the limitation of the quantity of gold to be expected from the mines as a general aggregate, however rich they may prove. The first comers had the best chances to hit upon rich deposits; but as diggers multiply, the chances of falling upon virgin deposits grow smaller, and they will have to be content with what the others, through imperfection of their labor have left; consequently the work becomes more heavy and less profitable, although it may be yet sufficiently compensatory if the expenses of living be not excessive. This is precisely already the case, the labor is much harder this year than it was last. At present there are not so many of those happy hits as formerly, although we yet hear now and then of a lucky haul, which however, when it reaches the ears of the public, becomes extremely distorted, and particularly so when companies that have dammed some spots of some of the rivers wish to dispose advantageously of their shares; these easily find ready letter-writers who communicate the lucky event to the public through the press. The accounts of successful digging in gold that went abroad never have been accompanied with statements of hardships attending the process; yet we are free to confess that there is no harder labor than that of gold digging and washing; this species of labor requires the strongest sinews enured to fatigue. Peculiar localities, together with general discomfort attending upon the life in the mines, may make gold digging particularly irksome. Yet all this can be borne, and one's labor may sometimes be crowned with a brilliant success. We have made the above statement with the view of laying the subject before those who may yet be novices in the matter, that they may understand their own case; we are far from discouraging the new aspirants after the favors of the dame fortune; we tell them, take your chance, it may be a very good one, but such and such circumstances are attending this courtship. Those from distant parts who on mere sound of the discovery of gold in California, rush head-long, sometimes leaving very good business

and comfortable living, cannot but rue the day, if they put their sole dependence upon their success in the mines. If they would come here with an intention of following some patient calling, they could not but grow rich with time. We have already plenty of miners; a larger number of them only diminishes the profits of all. However, come they must, for they are bent on it, be the consequences what they may.

When this gold mania ceases to rage, individuals will abandon the mines; and then there will be a good opportunity for companies with heavy capital to step in; there will be enough of profitable work for them; and it is then that the country will enter on a career of real progress, and not till then. Such companies, with superior mechanical facilities to do much labor, in a short space, will be enabled to go over the whole mineral field, although already dug over by individuals, and reap yet a rich reward of their efforts. And when there will be no more gold washing to be done, then a new era in the mining of the country will commence—we mean a regular system of mining by sinking shafts into the very bowels of the rocks will be entered upon. Spots for this system of mining are to be found in the auriferous region. (Since our return from the mountains our statement already is farther corroborated, as we learn that Col. Fremont, who just arrived from Stockton, has also found a regular vein of gold in the rock on the river Mariposa, which he proposes to work in the regular mining fashion, as it is a very promising one we understand.)

If we had a voice in the Legislative Halls of the Union, with the knowledge of the whole country in general, and the mineral region in particular, we have—seeking to gratify no men nor set of men—we would say, divide the whole *elevated* portion of the land enclosed by the Sacramento and San Joaquin into a set of lots to be sold to mining companies at a very moderate price. The low lands or the plains of the same region should be divided into a separate set of lots, to be sold to those only who wish to establish themselves as farmers. To avoid all difficulty and confusion in giving boundaries to these lots, we would adopt the following plan: In the mining district proper, the elevated portion of the land, every lot should have for its centre the whole extent of one of the streams that fall either into the Sacramento or San Joaquin; the lateral boundaries of these lots would be the ridges on both the north and south side, that turn the minor streams and ravines into the principal ones selected as centres of the

lots. These lots, unless they are as large as this division would make them, would not be worth the having; the land is worthless for any other purpose, except mining; and if this even should fail, then the only means left for the unfortunate buyers to save themselves, would be to turn their attention to the making of turpentine, for which they would find an extensive field. The other set of lots, comprising the low lands, should have for their bases the banks of the streams that run through the plains. There should be but two lots between two neighboring streams, so that they would have the same line for their common boundary while their respective bases, would rest on their respective streams. The reason for such a division is, that the central portion of the plain lying between two streams, generally is destitute of timber and water; is exposed to the constant burning sun and scorching wind, and consequently offering no spot for a farm house. For the same reason this portion of the country admits only of a spare population, whose principal occupation must be raising of livestock, as there is plenty of grazing ground; each farmer, however, must have a bank of a river to put his residence upon. In view of these circumstances these lots should be made sufficiently large to enable the farmer to devote his attention particularly to the raising of the livestock. By this arrangement the whole country will be benefitted; for the raising of livestock will be daily less attended to in the country south of San Francisco Bay, as the land there admits of smaller subdivisions for agricultural purposes. And it is there that farmers will crowd, as its climate and fertility of the soil are favorable to the maintenance of a dense population.

By the above disposition of the mineral region, we conceive the country will be greatly benefitted. The mineral region being under the sole control of mining companies will exclude all private adventurers; thus first benefiting the commerce by checking the now unavoidable desertion of the crews of its shipping, which at this very moment amounts to more than sixty thousand tons, of the finest ships in the world lying in the harbor, and nearly all of them unable to proceed on an outward voyage for want of hands on board—and secondly, preventing an influx of all sorts of adventurers into the country, whose presence is more of a nuisance than benefit to any country. Then a farming population, cured of the gold mania, will seek to enrich itself by more sure means, the product of the soil, and will crowd to the Pacific shores. The arts will take a start—every species of industry will be called into existence; the surplus capital of the commerce

will be devoted to the developement of internal resources of the country; nay, even capital from abroad may find an employment here; the commerce of the country will be put on a firm footing and will grow daily and steadily. Even the government itself, thus rid of this bother of California gold, will find more leisure to do its duty to this newly acquired territory. In fine, the country will grow steadily in a permanent population, in strength of order and law; and the business of life will unavoidably fall into its natural and proper channels.

We flatter ourselves we have said enough upon the subject in hand to clear up a little, the vision of the public that suffered itself to be blinded by the brilliancy of the California gold.

As we have above referred to Mr. T. H. BENTON's speech, delivered in the Senate of the United States, January 15, 1849, on the subject of land titles and sale of gold mines in New Mexico and California, we give a place here to his substitute for the bill then before the Senate, supposing it may be interesting to those who have not seen it. It is fortunate for California to have such a defender of her rights as the gifted Senator from Missouri. This is the substitute that defeated the bill in question:

“To recommit the bill to the Committee on Public Lands, with instruction to inquire into the expediency of reporting a bill for ascertaining the public and unappropriated lands in the territory of California, and for surveying and selling the same, and for granting donations to actual settlers, and permits to work the gold mines; and for that purpose to provide—

“FIRST. For the appointment of a recorder of land titles, who shall have the custody of all the public archives in relation to the disposition of the public lands, and shall record all the grants and all claims that shall be discovered, made known to him, and shall make two abstracts of the same, one to be sent to the General Land Office in Washington city, the other to be delivered to the Surveyor General of California, that he may lay down the grants and claims on a map to be retained in his office, and of which map a copy to be transmitted to the General Land Office, and another to be filed with the recorder of land titles in California.

“SECOND. To provide for the ascertainment of invalid grants or possessions, by authorizing a *scire facias* to be issued from the United States District Court against the party in possession to come in and hear the objections to his claim and to show cause why the grant should not be annulled, or the possession vacated in every case in which the recorder of land titles, upon consultation with the district attorney, or by orders from the General Land Office, shall be so instructed, shall be of opinion that the same is not valid under the treaty with Mexico, the law of nations, and the decisions of the Supreme Court of the United States—the decisions of the district court to be final, if against the United States, in all cases where the land in question shall be worth less than five thousand dollars. But no *pueblo* or *rancheria* Indians to be disturbed in their possessions, without special orders from the General Government.

“THIRD. To provide for the appointment of a surveyor general, and for the establishment of three land offices.

“FOURTH. To provide for donations of land to actual settlers, heads of families, widows, and single men over eighteen years of age, and an allowance of land for children under eighteen years of age, and for the wife in her own right, according to the provisions of the bill proposing donations to the settlers in Oregon, which passed the Senate January 3, 1843.

“FIFTH. To provide for preserving order in working gold mines, by appointing an agent to grant permits for working small lots, and settling summarily, and on the spot, all questions of boundary or interference among the diggers. The said permits to continue in force while the lot is worked by the person receiving it, and to be limited to —— feet square.”

It is not necessary for us to offer here any comments upon this substitute for the bill above alluded to, as we have already in anticipation expressed our opinion in relation to the measures to be adopted by the Government of the Union respecting land titles and gold mines in California.

ADVICE TO THE MINER.

On arriving in California, the gold hunters, if we may be pardoned the expression, first touch the shore at San Francisco.—There they look for information how and what are the means to get the precious pelf in large quantities, that they may not stay in the country too long; if they happen to have a letter to some one in the place, or if they meet an old friend, they put a thousand questions to him faster than he is able to answer them, evidently hurried by anxiety to lose no time and opportunity. Then they will tell him about their plans, how they are going to proceed in the business, what excellent machinery they bring from New York or some other place, to work with, and so forth. The Americans, and particularly those that call themselves, or are called, Yankees *par excellence*, have the reputation of putting many questions to people they happen to fall in with; but on this occasion, they are more, even than Yankees, in pouring upon the stranger they meet, their interrogatories. Now, we propose here to benefit both parties, the *annoying* and *annoyed*—we use the expression not to disguise the truth in obscure words as it is really the plain fact—and anticipate all such questions by suitable information, upon which they can put at least some reliance, as we are neither a merchant, a trader, or speculator in land or mines.

Neither San Francisco, the city of Sacramento nor Stockton are the places where reliable information is to be expected by one who proposes to go to the mines, as these places may be compared to the famous Dyonius' ear, where the gentlest whisper is re-echoed a thousand times. Interest and ignorance frequently conspire in circulating extraordinary stories of success, on very slender foundation, for some never have been in the mines at all, and have not the slightest idea of them, crediting everything they hear; others have *their* posts established on some particular spot, where, of course, the mines *must be very rich*. The trading portion of the inhabitants of these places see gold brought in in large quantities, but they never trouble themselves with how much labor it is got out, who has failed and who has

succeeded; in fine, they hear only of constant success. The fact is, that while there are many who succeed, there are others who scarcely pay their expenses. This should not be withheld from the knowledge of a new comer, since in case of failure in his mining expectations, he will be somewhat prepared for such an event, and will be able to make the best of it.

The new comer, on preparing himself to start for the mines, first should know what he wants for his expedition. Many start lumbered with baggage, imagining that they cannot and must not forego the indispensable comforts of life. All baggage is a burden and heavy expense to the miner; the cost and sometimes the difficulty of transportation forbid any such commodities; and besides, it will always impede his free movement, if he should want to go from place to place. He should have absolutely nothing more than what he can carry on a beast, if he be able to have one; or if not, what he can shoulder himself. The less one brings to the mines, the better prospects of success he may have, and the more he is loaded with goods, the more probably he will lose. This is the secret why all hard working men who are inured to hard labor and strangers to enervating comforts, such as sailors and mechanics, generally do very well. The miner needs good, stout and warm clothing, just enough in quantity for a change for the sake of cleanliness—a pair of stout boots or shoes, or both, two good blankets to sleep comfortable, warm and dry; his mining tools consisting of a pick-axe, spade, crowbar, a tin pan to wash gold in, a good sheath knife, iron spoon and a trowel. The pick-axe and crowbar should be of a convenient size for handling, and well steeled on the ends. A washing machine is used when there are two or more working in partnership. All the machines that have been brought here from the States are absolutely useless; they have proved profitable only to the venders there. The simple machine which here is in common use consists of three light boards three feet long and about ten inches high, put together in the shape of a cradle with two rockers underneath; the bottom board is made a little narrower; the sides on the upper edge from the middle backwards, are bevelled off two or three inches, and the same is done forwards so that the board, when looked upon from the side, presents an irregular hexagon; at the head part of the machine, on the upper edges of the boards, rests a box of boards, called a sieve or riddle, from three to five inches high, with a tin or sheet-iron perforated bottom; it is fixed, sometimes, in a manner to be taken out when necessary, sometimes on hinges to be thrown backwards when it is necessary to throw away the

washed stones. The head part of the machine is well boarded; at the opposite extremity a board is likewise placed, the upper half of which is cut out in the shape of a crescent, leaving about three or four inches at the bottom of it; this opening serves for a passage of dirt, stones and water that are thrown in at the head into the sieve. It has also one or two bars or cleets across the bottom board at the distance of a foot each, and about three inches high. The perforations of the sieve or riddle are sometimes triangular, whose base and sides are about an inch, sometimes they are circular, of the diameter of about three-quarters of an inch. Under the riddle, in the interior of the machine, a board inclined diagonally and backwards is fixed, leaving however a sufficient space at the lower edge of it for the passage of the stones, dirt and water; it is called by the miners an apron or screen; the object of it is to throw back the water that it may cover the whole bottom equally and run an even current. In the bottom board, about the centre of it, there is a hole an inch in diameter, made back and close to the first and second cleet, if there be but two of them, which is well stopped and opened only when it becomes necessary to take out the residue, dirt and gold, to separate the latter from the former by washing it in a tin pan, which should be of the size of milk pans used in the States. The tin pans are to be got at San Francisco at from three to four dollars, or in the mines at the trading posts for the double amount. The machines can be got at these posts by paying from two to four ounces; but it is so easily made that any one himself can make it and save the money. If put together by means of screws rather than nails, it could be taken apart and conveniently carried about when necessary. The machine requires also a piece of strong wood of from two to three feet long, to be firmly fixed to both sides across the box to be used as a handle for rocking. To work these machines, in some places, as on the banks of rivers, two persons only are required; while in dry diggings where water and gold dirt are not so conveniently situated, it requires three or four persons to do the same work; one to work the machine, another to dip and throw water on it, a third to carry dirt, and the fourth to dig it; or two to dig and carry, and two to wash dirt. However, according to circumstances these partnerships are formed, it can only be said that there is no occasion for more than four persons in a company, and frequently three or two do better than four. For protection and occasional service that one may require from another, it is always better to be in partnership with a suitable person or persons: in messing, for instance, it is better to have

several in a mess for the sake of occupying the same tent, and having less cooking to do, as in such cases this is done by turns. The small machines have thus far been the best machines in use, and under the circumstances of pressing necessities of miners, in which they had their origin, nothing better or more convenient could have been got up; but they cannot be said to be the result of a scientific investigation and extensive experience. Recently, a very great improvement has been introduced into the method of washing placer gold. This improvement is the "Burke Rocker," as improved by Jackson, and which is now generally used in Virginia for washing gold in similar deposits to those of California; it is there no longer an experiment as it has been used in those mines for thirty years past, after an examination of all the processes for washing gold both in Europe and America. This rocker has been found to be perfectly applicable to the soil here, as two of them have been in a successful operation on Mormon Island for some time past under the immediate superintendence of Mr. Jackson himself. It is destined to effect great changes in the process of washing gold in this country, and particularly when the miner that now works independently and alone will find his labor very hard and not paying him sufficiently, since this machine being worked with mercury, saves the most minute particles of gold that escape the eye, and thus gives in aggregate a greater result than can be sometimes obtained by washing large pieces alone. It requires five persons only to work one of these rockers; their great excellence can be summed up in a very few words: by the use of one about four times the quantity of earth may be washed by each man daily, and probably from two-fifths to three-fifths more gold is obtained from any given quantity washed. They will be doubtless ere long used with great success in going over the field already washed by the present imperfect method; as the bars and banks of rivers and the earth in "dry diggings," for certain it is that the amount of fine gold dust inevitably lost by the smaller machines is greater than all that is saved ordinarily.

This machine is a simple trough about nine feet long with a bottom made of cast iron plates perforated throughout, the size of the holes increasing gradually as they descend towards the lower end; beneath these plates there are draws in which mercury is put; the dirt, as the machine keeps rocking slowly, is carried along the plates by the water thrown from above by a pump and washed down, gold together with finer particles of dirt descend into the draws to be amalgamated with mercury. The produce

of such a washing is then put into a retort to separate the gold from the mercury. In the process of separation of the former from the latter, about two per cent. only of mercury is lost. These two kinds of machines are the only ones which we can recommend from our own observation; they are well adapted for these mines at least, and they can be easily procured here. Numerous inventions for this purpose were brought from the States, and none of them answered the sanguine expectations of their owners; they are not worth here even the cost of the materials they are made of.

The provisions used by the miners consist of mess pork, bacon, hams, jerked beef, flour, sugar, tea, coffee, chocolate, beans, rice and dried apples, fresh beef and mutton whenever they can get it, which is sometimes the case, and deer meat when they can kill it. As much as one can, for the sake of his health, he should abstain from using much salted provisions in the mines, and to counteract their bad effect on the system, it is advisable to use vegetable acids, like lemon juice, which in the mines is sold bottled up; citric acid, which is more easy to carry, or even tartaric acid, dried apples, and other dried fruit serve the same purpose. In using these acids it is better to use them with water alone without sugar; just making it acid enough to suit the individual taste. Dried apples made into apple sauce with sugar are agreeable to take, and are calculated to keep the bowels open, an important consideration for the miner. If one should be attacked with diarrhœa or dysentery of course he should abstain from them. One of the articles equally important as others we have not yet mentioned; we mean saleratus. In making camp bread it is necessary to use it to make the bread lighter. The prices at which provisions can be bought at present in San Francisco are the following:

Mess Pork,	per bbl.	\$28.00
Bacon,	per lb.	28
Hams,	do.	35
Sausages,	do.	40
Flour,	per bbl.	12.00
Sugar,	per lb.	15
Tea,	do.	1.00
Coffee,	do.	12 1-2
Chocolate,	do.	40

Beans,	per bu.	1.50
Rice,	per lb.	10
Dried Apples,	do.	25
Jerked Beef,	do.	25
Lemon Juice,	per bottle,	1,00
Salæratus,	per lb.	1,00
Vinegar,	per gal.	1,00

As the miner proceeds on his route and farther from San Francisco, he will find, as a general rule, that traders expect to make each a hundred per cent. profit upon the original price they paid. In this way it happens that in the remotest points of the mines he will have to pay three or even four hundred per cent. upon San Francisco prices. One of the chief reasons for this is the high charges for transportation of goods. However, competition has already effected some changes in these matters, and ere long may effect more. Notwithstanding these high prices, it may be sometimes more convenient for the miner to buy his provisions at the nearest point where he intends to work, or is working, than to carry them along with him all the way; here we cannot give him any advice as to what would be the best course; he must determine himself according to the circumstances he may be in, and the means he may command.

The last, although not of the least important articles for a miner, are arms. One need not be armed cap-a-pie in the mines, but a good rifle may be frequently useful to keep the evil minded at a respectable distance; or when in the woods, or far away in the mountains, an Indian may be in his way, or the grisly bear, and then a fire-arm may be sometimes necessary. Colt's pistols are very convenient weapons. It is hardly necessary to say that he needs a few cooking utensils, with which he should be provided. A small hatchet may be equally necessary. In conclusion, we would say to the miner in one word, take no more with you than you absolutely need, that you may move lightly; as it may be sometimes necessary for you to go on foot. Thus equipped in all the necessities, the miner will start on board of a lanch, where he has to pay from 14 to 16 dollars passage money, and if he have much baggage, from 2 to 3 dollars per hundred weight freight, bound to the city of Sacramento, or to Stockton, according to his fancy. He is to provide himself with provisions for the trip, which may last from three to seven or

eight days. Taking the Mokelamy river as dividing the gold region into the northern and southern portion, the miner is to start accordingly—for the Sacramento city when he wishes to go northward, or for Stockton on the San Joaquin, if he go southward. It may be expected from us that we should give particular advice to the miner where it is best for him to go to dig. Now, it is impossible so to do conscientiously; the whole extent of the mining district is crowded with people, consequently for the very crowd, those spots that were good for a few, now are not so when there are many, as the subdivisions of the produce must be greater, and less must fall to the share of each. We may say in general terms, that farther south from the Touolomy to the San Joaquin, the diggers were not so numerous as elsewhere, consequently there is yet a better chance there than on other points. West of the Sacramento, some two hundred miles from the city of Sacramento, about the Trinity river, there are yet virgin ravines and streams, as very few have ventured so far.

On the Feather river and the Yuba, there were very good diggings; crowds of people, whites and Indians, have worked there for these two seasons; however, by going farther up these rivers some untouched spots may be found. We will remark here once for all, that the higher you go up the rivers the greater difficulties you will meet in getting over the ground, as they are more inaccessible; at the same time mules and horses are needed to carry you and your provisions, and you may also lack grass for your animals. But to know how far one may go up the rivers of the gold region, he must exercise his judgment, and he may depend on this fact, that there is no gold at the heads of these rivers, as we have examined them, and they all spring in the Sierra Nevada; as soon as you see the oak and red soil disappear from the hills surrounding them, you need not go beyond this line farther than from five to ten miles to convince yourself there is no gold there.

The Bear Creek was not very rich in the precious metal, and now may be less so as it has been worked. On these rivers people generally were making an ounce per day, some much more; but how long it may continue so we are not able to say. These rivers being accessible for a considerable distance to waggons, diggers crowded there, as provisions were cheaper there than anywhere else. These rivers have their forks, or in other words, tributaries of more or less importance. Below the mouth of these forks it is

well to look for deposits of gold in the main streams. The Bear Creek has a tributary called the North Fork, in extent probably from forty to fifty miles. The Yuba has two forks on the north bank of some importance. The distance from the Bear Creek to the Yuba in some places hardly can be more than ten miles. The general course of the Bear Creek is West by North nearly; it meets the Feather river about ten miles below the Yuba, which likewise mingles its waters with the latter. The Feather river, which heads far at the North, taking almost a parallel course with the Sacramento, runs on in a South-Westerly direction, and having thus accumulated its waters is lost in the last mentioned majestic stream some distance below.

From the city of Sacramento, the miner has two routes before him, from which to select—he may start for the upper tributaries of the Sacramento, viz: for the town of Vernon, at the mouth of the Feather river, then up to the mouth of the Bear Creek, and farther up to the mouth of the Yuba, or to any of these points, direct from the city of Sacramento. Another route is for the American river, which has three tributaries, known as the North Fork, Middle Fork and South Fork. Waggoners go up to the North Fork for seventy miles. The Middle Fork is inaccessible to waggoners—it empties itself into the North Fork about ten or twelve miles above the South Fork, and the latter joins the former at the distance of about thirty miles from Sacramento City. At this junction there is on the South Fork an island called Notoma, or more commonly Mormon island, from the fact that a company of Mormons were the first to dig here. The diggings have proved very good; one could average an ounce per day. There is a company of miners who dammed or rather turned the current of the river for a short space, and now are reaping abundant fruits of their labor; they are getting out from \$1500 to \$2,000 per week, working with mercury in the Virginia rocker. It is a trading post, where many traders are established; a stage from Sacramento City stops here on its way to Sutter's Mill. Going to the Middle Fork one must pass the South Fork at the point where is now quite a settlement, known as Sutter's Mill or Columa, a corruption, probably, of *Columba*. The distance from Sacramento City to this town is 45 miles of tolerably good waggon road. There is no lack of traders; there is a Saw-Mill and a Post-Office. From this point the miner has to start with pack-animals if he wish to go up any of the rivers. The points known on the Middle Fork where a good many miners have been engaged are the Spanish Bar, higher up Ford's or Middle Bar, farther up the Big Bar, and still farther up Rector's Bar; the

first 15 miles distant from Columa, and the last about thirty miles. The hills bordering on all the streams in the gold region are difficult of descent generally speaking, and they are so at these points also. In our opinion, the South Fork, is or was one of the richest portions of the gold region, its dry diggings proved very profitable to almost all the miners that have been engaged in them. Every river has its dry diggings, as it means washing in the ravines neighboring upon rivers, and which have small streams that are sufficient to afford water for washing gold. The dry diggings on the right bank of the South Fork, known as Kelsey's Diggings, and on the left as the Old Dry Diggings were very rich. Last winter a good many Oregon people built log houses in both of those diggings, and passed the winter digging, when the weather permitted; the fruits of their labor were abundant, and most of them have left their places with bags full of the precious pelf.—Although they have done their work pretty thoroughly, yet there may be some places found that may pay. The South Fork has a tributary known as Weber's Creek, on which a good deal of gold has been dug out; it has a small settlement of log houses in the neighborhood of the settlement just spoken of, on the left bank of the Fork. The distance from these trading posts to Sutter's Mill is about twelve miles. There is a direct waggon road from Sacramento City to these diggings.

To go from Sacramento City to the Mokelamy, the miner has to pass the Consumnes at Dailor's farm, about eighteen miles from the above place, and then farther south, the Dry Creek, from which the first trading post at the Mokelamy diggings may be about 30 miles distant. The Mokelamy diggings are distant from Sacramento City about from 50 to 60 miles—a waggon road leads to them. The Consumnes has not been dug much, but the Dry Creek had a very good reputation among the miners. The banks and dry diggings of the Mokelamy have been rich in gold, and may be so still; some diggers passed last winter there, and were not sorry for so doing. This summer there have been many digging, but their labors have been disturbed by hostile Indians. We think there may be yet rich diggings there.

Supposing our miner to have arrived at Stockton and he proposes to go to the Mokelamy, he would have to cross the Calaveras at the distance of about 15 miles, and strike the Mokelamy diggings 70 miles distant from the above mentioned town. If he should like to go South, he would find diggings on the Stanislaus, about 40 miles distant from Stockton; then he

might pass on to those of the Touolomy, 20 miles distant from the latter, and farther on he would meet at the distance of 30 miles with those of the stream *La Merced*, then at the distance of about 20 miles he would come to the stream *Mariposa*. In a direct line from Stockton to the Mariposa it may be from 80 to 90 miles. Throughout the gold region waggon tracks and trails are well worn out at present; at convenient distances on the roads, there are trading posts established where can be had water and pasture for animals, and where one can stop. At Sacramento City or Stockton teamsters are to be found who know all those routes, and take up miners' baggage to any place they like, if it be accessible to waggons. It would be impossible to describe the routes particularly, considering that they go mostly through an uninhabited country; the only sure way to learn the direction of the place one intends going to, is to enquire at the place he starts from. We can do here no more than give general directions on the subject. In the Southern portion of the mining district, Indians are somewhat numerous, and it is well to be on one's guard, as they, if they do no other harm, are apt to steal your horses. There is a difficulty in keeping horses throughout the mining district, on account of the trouble of taking care of them, or of the danger of losing them, and which difficulty increases as the season advances, for then grass grows scanty. In the neighborhood of nearly all the diggings there are men who make it their business to take charge of miners' animals, at the rate of from twenty to thirty dollars per month. Whatever may be the trouble of keeping a horse in the mines, yet it is a great convenience, as one is enabled to move about freely whenever he wants. The prices of horses and mules in the city of Sacramento and Stockton and throughout the mines, are fluctuating; they are according to season, demand and supply of the animals. In the commencement of the spring, when miners were starting for the hills, horses were selling at from two to three hundred dollars apiece; towards the fall, good horses could be got for one hundred and fifty, and mules from fifty to one hundred and fifty dollars; however, next season we believe the animals will be cheaper than the last, as there has been a large number of them introduced by the immigrants from the States and from Mexico. The rate of transportation by waggons varies, of course, according to distances; but it ranges from twelve to twenty, and sometimes even thirty dollars per hundred weight. The season and quantity of teamsters regulate these matters somewhat. In hiring a man to drive a team, one must pay him from two to three hundred dollars per month, as

every one expects that in whatever business he engages, his chances to make money should be as good as those of the miner, and that is the principal reason why wages of all kinds are so high in this country; but they are beginning to come down a little. Sometimes it is necessary to pay a man for his day's work an ounce *per diem*.

Now, we will suppose an inexperienced miner is arrived at the place of his selection in the mining district; we will suppose him also to have started for the mines in company with one who has had already some experience in the handling of the pick-axe, shovel and pan; for he must have a week or so of apprenticeship in order to be *au fait* with the practical part of the business.

On arriving at any spot containing gold deposits, the first step to be taken is to examine the general appearance of the country. The hills should be covered with brick-red soil—this should be a prevailing feature in them, although there may be now and then an exception to some portions of them; slate rock should be found, of whatever description, if not on the surface, at least on digging a few feet; but a general rule, when there is any below the surface, some of it will be seen above it in one direction or another. Likewise quartz should be found scattered about on the ground; quartz is a milk-white opaque stone, of considerable hardness; on these occasions it is generally veined with red streaks of more or less intensity of color. The presence of these three signs jointly is sufficient to authorize one to look for gold by digging in some convenient spot, but any of them singly is of no validity in this respect. And if by digging and washing the dirt one finds as a residue black scaly sand—which is magnetic iron, and which, if one were not able to distinguish by the eye, could prove it by the magnet—he can safely expect to find some gold there on some spot or other. The absence of this sand as a residue after washing, is a positive proof that it is vain to look for gold in that region. In digging for gold, besides studying the above mentioned signs, it is necessary to observe and study the currents of water, be it in ravines or dry diggings or along the banks of rivers. Water is perpetually changing its current, consequently before striking a spot with a pick-axe, it is well to consider whether the spot be an ancient bed of the river or brook, or not; whether there be any obstacle in the way of the current that would cause a deposite of gold to take place either before or behind it, for it is only in such places that we can expect to meet with

success. Examine also the rock over which, at some season, water passes, and then by breaking it up you may discover a deposit of gold called, by miners, a pocket; such deposits are frequently found on ledges of slate rock in rivers or small streams. On opening a hole in search of gold, the top dirt is thrown away, and each successive layer of earth is examined to ascertain in which portion of it the gold is found, and thus the careful miner proceeds till he comes to the *rocky* bottom; he never should be satisfied with his work till he does come to a rock, which he should nicely scrape, sweep and collect, then wash the dirt and decide accordingly; if the rock be slate rock, he should split it and break it up, and then wash it, as it is in the cracks and pockets of this rock that gold is frequently found in considerable pieces. A layer of clay, like a rock, equally serves as a barrier to gold; it arrests it on its surface. This work, particularly, should be done carefully when the miner is, as it is called technically, *prospecting*, when he looks for places where he would work, as in so doing he at once gets familiar with the character of the earth in that region, and will know in what portion of it he should look for gold. It is considered by the miners at present, that if from a panfull of dirt they are able to get a quantity of gold equal in value to fifty cents, they are satisfied with the result, and consider that they can make a little more than an ounce per day with a pan only. However, as the mines will be getting daily more and more worked out, they will have to be content with much less. But as yet, if they get only twelve and a half cents of gold from a pan of dirt, they do not think it is worth the trouble of getting it.

As a general rule, it is a practice among the miners to leave each digger a sufficient space for a hole, upon which nobody has a right to encroach; from four to ten feet they allow among themselves to be sufficient for each, according as they may be more or less numerous and as digging may be more or less rich. A tool left in the hole in which a miner is working, is a sign that it is not abandoned yet, and that nobody has a right to intrude there, and this regulation, which is adopted by silent consent of all, is generally complied with. It is very seldom that any disputes about one's rights occur; and if they do, they are easily settled among themselves. In fact, as a general rule, miners heretofore have been law-abiding people; some excesses now and then may occur, but seldom of much importance, and if any of them should commit murder or theft, justice is no where so prompt and efficacious as among them. At different points of the mining

district there have been persons executed for murder and robbery, by the stringent code of Judge Lynch, but under the superintendence of juries and judges selected for the occasion. At present, by order of the Governor of California, a sort of jurisdiction has been established at different mining points by elections held for the purpose; but as the mining population is constantly fluctuating, such arrangements cannot be permanent, of course.

The time for mining in dry diggings commences about the end of March and lasts till July, at which time water gets very scarce, and consequently digging becomes unprofitable, or even impossible. Some dig on the banks of rivers even in the spring when there is much water, but it is not a very profitable operation. The time when the rivers begin to fall by degrees is the month of June, and they continue falling till the next spring, when the melting snow again replenishes them; In August the snow from the mountains where they head, disappearing, they do not receive any new supplies, while the scorching sun keeps wasting them all the time, and in winter where it snows but does not rain they continue rather low; thus in winter time they are at their lowest ebb.—From the middle of September till the end of November is the best season for mining on the banks of rivers, as it is then that the lowest bars are uncovered, and even sometimes one may work in the very bed of the river itself. This is the time at which in many places, the current of a river may be turned aside with great facility. In so doing, miners should not rush blindly into the work without examining attending circumstances; dams have been made where there was not gold enough to pay one man's day's work. It is first necessary to see whether the hills in the neighborhood warrant the supposition that there must be gold in the river in that particular spot; then it is important to see where the current of the river would be most likely to make such a deposit; this being investigated properly, there will be a better chance for the company of miners to reap a plentiful harvest, should they determine upon the work.

The months of July, August and part of September are sickly in the mines, and particularly on the Feather river and the Yuba. The sickness is owing to the extreme heat and carelessness on the part of the miners; some of them work in the hottest hours of the day, and sometimes not protecting sufficiently their head and body from the scorching rays. Fevers, diarrhœa and dysentery are the complaints commonly met with—occasionally scurvy shows itself; it is more apt to happen in winter time. But, however,

whenever it occurs, it is owing entirely to the carelessness of the patient; a sufficient attention to the use of vegetable acids, as we have already mentioned, would prevent such occurrences.

To guard one's self against diarrhœa or dysentery, in consequence of cold, one should sleep under sufficient covering, and if not under a tent, he should wrap his head into a silk handkerchief on going to bed; in this way he will do much to prevent it, and particularly if he be of regular habits. But should one be taken with it, a very simple remedy, at the command of every miner, if resorted to without delay, may cut it short at once; if it be slight, let him take a cupfull of lye, which he can make from the ashes of his own fire by throwing a handfull of them into a tea cup of warm water, let it settle and then take it; this is to be repeated two or three times during the day; at the same time he should be careful to be warmly clothed. If this remedy should not check the disease the same day, then next morning he may take a tea cupfull of rice and burn it as coffee is burnt, after which it must be boiled with no more water than is necessary to make it very soft and of the consistency of a pudding. This rice, thus prepared, is to be divided into three doses and taken morning, noon and night. At the same time, an hour after taking the rice, a good tea-cup full of oak bark tea, without any sugar, is to be taken twice a day. We can assure our reader that this simple treatment in our hands never failed in either of the above complaints. And to avoid constipation after this complaint, which is apt to follow, and which may equally become uncomfortable, a *small* quantity of dry fruit, such as prunes or dried apples, taken along with some farinaceous substance, may restore the bowels to their natural condition.

With these precautions, and with ordinary prudence, one is not in danger of being afflicted with any of those complaints very seriously. It is frequently necessary to work in water; for that purpose, high legged waterproof boots are useful; or if one works bare-foot he should avoid to feel much cold in them, and on concluding his work, he should dry them and put on shoes or boots. Some miners spend the winter in the mines, and there is no doubt they are in the end better paid for their labor than the rest who work in the usual season, for they work more at their leisure, in a spot they have marked before for a rich one, and their work is carried on with abundance of water, and at a time when there are no people to crowd them. Oregon men have done so last winter at the old dry diggings on the South

Fork, and they have not regretted it. But there are inconveniences that but few will bear with. He who proposes to spend the winter in the mines should start in the end of September, and while waggon roads keep good, provide himself with a log house and sufficient provisions to last him till the middle of April next, as he must expect to be unable to move from his spot all that time, as roads are impassable for beast or man. That whole region almost becomes a mire—the soil is so loose and saturated with water. At this season he should particularly guard himself against scurvy; he should daily make use of some acid in some shape or other, such as dried fruit, lemon juice or citric acid; tea made of fir leaves is very beneficial and far preferable, for health's sake, to common tea. He should use pork rather as a lard necessary in his cooking than as a meat, and depend more on good dried beef, as commonly made in the country, which may be rendered very palatable by soaking it first and then pounding before cooking it. Towards the middle of November winter begins to set in, and while it snows in the mountains it rains in the settlements; the rains are less frequent, and commence later as we go farther South; they seem, however, to be sufficient for the necessities of the country as a general rule.

Before we take leave of the miner, we will give him one more piece of advice which is none the less important for being the last. On his return from the mines, should he be so fortunate as to have a large amount of gold to send over to the States by drafts, he should enquire if the man who sells him the draft has the power of attorney from the man he draws upon, which should be exhibited to him, thus satisfied, he can with greater security trust his money.

TOWNS OF CALIFORNIA, AND WHAT RELATES TO THEM.

Before the occupation of the country by the Americans, its population was considered to amount to from thirty to forty thousand inhabitants natives of the Spanish race, Indians and foreigners included; but since that time its growth appears to be magic, and particularly since the discovery of the gold mines; every corner of the world seems to contribute its share of inhabitants; every tongue almost is spoken in the streets of San Francisco. But this new population does not spread through the country to benefit it; it crowds only to the mines or the port of San Francisco. It consists chiefly of speculators and diggers, and some mechanics; of farmers we do not hear as yet. The town has led the van in growth; there is nothing similar on records; one may say without exaggeration that it has been inaugurated in one moment by some superhuman power, or sprung like one of those ambulating towns do spring the day before a fair. In fact, it looks very much like one of those cities only built for a day. Its houses built of planks and cotton sheetings cannot last but a day; however, whatever they lack in quality they make up in quantity. Four months ago the town hardly counted fifty houses, and now it must have upwards of five hundred, and these are daily increasing; even a theatre is spoken of as being built. From eight to ten thousand inhabitants may be afloat in the streets of San Francisco, and hundreds arrive daily; many live in shanties, many in tents, and many the best way they can. The magic power of gold marks every spot here; vessels from different parts of the world press into the harbor, and make already a large floating city in front of the *terra firma*; goods of all descriptions are scattered on the shore in open streets that are too narrow for men, animals and carts that pass up and down. The freaks of fortune are equally as remarkable in this place as everything else connected with it; some men who two years ago had not a cent in their pocket, count by thousands now; property that a year ago could have been bought for five or six thousand

dollars, now pays a rent of thirty thousand dollars per annum; mechanics who formerly were glad to get a job at two dollars a day, now get from six to twelve; in fact, mechanics, and particularly carpenters, are the most independent aristocracy of the place. Strange as it may appear, yet in the midst of abundance of every kind, women are very scarce; the domestic circle does not exist here as yet; domestic pleasures are wanting, and household duties are unfulfilled.

We touch here upon a subject which, if we allowed ourself to speak feelingly as a bachelor, we might be even eloquent, but in the position we find ourself as a writer, we are bound to speak philosophically only, viz: look upon the question before us with that cold eye of indifference or reserve which becomes an impartial judgment. We will, therefore, say nothing of ourself—we will speak of the situation of others; we will try to advocate the cause of poor and forlorn bachelors, and persuade some respectable heads of families that have daughters to settle in life, to come to California and build up the society, which, without woman, is like an edifice built on sand. Woman, to society, is like a cement to the building of stone; the society here has no such a cement; its elements float to and fro on the excited, turbulent, hurried life of California immigrants, or rather gold hunters, of all colors and shapes, without any affinity; such an aggregate or mass of human bodies have no souls; they are but a grand automaton, whose springs Mamon alone makes vibrate. Such is the society of San Francisco. But bring woman here, and at once the process of cristalization, if we may be permitted the expression, will set in in the society, by the natural affinities of the human heart. There are here many worthy men who have had the good luck to make a respectable competency, who would like to be married and settled in life, as honest and sensible men should do; but for want of the fair ones, they think only of getting away from here as soon as possible. Now, the country by this state of society, loses much in many respects, beside losing many valuable inhabitants; and those who stay behind intend to do the same when their turn comes. This would not be so if some pleasant families from the States, rich in nothing else but in intelligent, home educated daughters, they could well provide for all their members here with much more ease, as yet, than in any portion of the Union. These families must be easy in their circumstances, so that they may be able to buy farming lands where they could settle, and by the natural growth of landed property they would, in a few years, find themselves

wealthy. This country is particularly fitted for that class of people who once knew what affluence was, and who by a sudden turn of the wheel of fortune, found their means reduced to mediocrity. Life in California, although it must have its inconveniences belonging to a thinly inhabited country, yet it cannot be compared to anything like life in new settlements in the Western States or Oregon. If people only were willing to take it easy, they would, ninety-nine out of a hundred, even like it. The population here is much more ready to take at once, or very soon, a more agreeable and polished form than could be expected in any other new country. There is something in the climate—we of course except San Francisco and the Valley of the Sacramento, which predisposes one to contentment. The sunny skies for so long a portion of the year have an exiliating influence upon the mind, and so much so that we have known cases of Americans who were in the habit of carrying care-worn visages in their own country, acquire here smiling and contented countenances, smoothed by placidity. Indeed, we would recommend, as a medicine, to all vinegar-faced, care-corroded gentry, that are well to do in the world, to come and settle in the rich valleys of California, where good health and azure skies can be enjoyed; where winter does not touch you with its freezing hand.

The people of the country, of the Spanish race, possess a good deal of natural simplicity, but without that boorishness and grossness which characterizes the lower order of some of the European nations; they are ignorant for want of opportunities of learning, but nature has not refused them capacities for acquiring knowledge;—they are obliging in their disposition and hospitable; the latter virtue, however, already begins to undergo some changes since the arrival of so many foreigners; yet among themselves, or those upon whom they look favorably, they preserve their good old custom. Their women are healthy, robust, good looking and hard working as a general rule; kindness is a universal feature among them; and if one had to choose between them and ordinary women of some civilized portions of the world, we do not hesitate to say that the Californian women would receive the preference, although in point of information they are deficient.

Their men are somewhat disposed to idleness, but this may be owing partly to the facility with which they were in the habit of getting a living, and which now will have to undergo some modification. As a nation, they

are lively, and cannot be said to be vicious; in fine, they have sufficient good qualities to make up for their deficiencies. Such as these good people are, they do not offer much temptation to foreigners who have seen higher forms of civilization to become commingled with them, but they have some good elements among them, and if respectable families from the States and Europe would come out here, the different races would soon be mixed up, and make before many years one of the most pleasant societies. By such an immigration the country would gain vastly; because then so many young men that have come here would form here their family ties, and would bind their interests with the interests and welfare of the country. But, as it is, California unavoidably must receive a check in its progress, as it will be only inhabited by passers-by, so to speak, who will have no permanent interest in the country.

The greatest privations that a bachelor is in this country exposed to, consist in not being able to furnish himself with clean linen when he desires, as domestic service is so difficult to be kept up here for want of working women. To induce some of the few women that are here to condescend to wash their linen for them, they have to court them besides paying six dollars a dozen.

We know an instance of an inveterate bachelor who married a spinster because she refused to wash his clothes for him, but he was determined she should do it at any price, as he was a great lover of cleanliness; in this dilemma he resolved to pay her all he was worth, rather than forego his habit of cleanliness. He is in the habit of saying, "he who goes without a clean shirt on, keeps his conscience open to suspicion"—too severe a judgment upon us the inhabitants of this town.

When this uneven slope of the hill on which the town is situated shall be built up with fine and solid houses, what now looks dreary and desolate will then look very picturesque and smiling; so will it be with the society here; when elements that are now daily accumulating get through their fermentation and become settled, they also will present a smooth and transparent surface to the moral eye of the beholder, but as yet, one needs a little philosophy to bear him through the present that he may lean on the future.

In the moral aspect of the town, save some occurrences, there has been a good deal to wonder at—that in such a medley of races and tongues nothing very serious has happened to jeopardize its existence or to injure its prosperity, under existing circumstances, is very remarkable; its order and quiet has been only once disturbed for a few days by a set of men, chiefly from New York, who called themselves, very significantly, the “Hounds.” For a while they went parading the streets publicly, by day light, and breaking glass-ware in grog shops by night; when they commenced to commit outrages upon property, took the lives of some foreigners and violated the honor of some women, the citizens rose like one man, armed themselves and arrested them nearly all and put them in duress on board a man-of-war, to wait for their trial, after which they were *disposed of according to their merits*. Since that time order and quiet have prevailed, and more active measures have been taken to prevent another necessity to chase after any other pack of “hounds.”

The state of society in California has not yet arrived to that point of organized life where its most important movements can be stated, or represented in numbers for the especial satisfaction of the political economist. We will not therefore attempt anything of the kind, but we may however state in numbers a few facts in regard to the shipping in this port.

From the first of January, 1849, to the 30th of September of the same year, 509 vessels arrived in the harbor.

The sum total of passengers in the same space of time, 18,972.

In the month of August, ending on the 29th, the number of women arrived by sea 87, among whom 6 were married—42 American.

On the 30th of August there were 61,585 tons of shipping in the harbor of San Francisco, exclusive of river craft, which amounts to about 60 vessels plying up the rivers Sacramento and San Joaquin.

In one day, on the 29th of August, there arrived in San Francisco by merchant vessels, 654 male and 27 female passengers.

On the 24th of September 11,000 tons of shipping came into the harbor.

On the 30th of September there were 94,344 tons of shipping in the harbor.

The directions for entering the port of San Francisco that have been heretofore followed, being found incorrect, we give room to the correction of them, with which Capt. E. A. KING politely furnished us, together with regulations of the port:

DIRECTIONS FOR ENTERING THE HARBOR OF SAN FRANCISCO.

In making the northern entrance, called Sausolito, keep the Fort and the island of Yerba Buena in one; in coming from the south and making the southern entrance, keep the island of Alcatrazes or Bird Island, touching the Fort. After the Fort bear south per compass, steer due east, (true) to avoid the flats which are making out from Belona's beach. No danger can be apprehended from Blossom Rock. In running into this harbor after passing the Fort, and having it bearing (true) south, good anchorage can be obtained from five and a half fathoms to three fathoms. At present there are no buoys, but in the latter part of next month there will be buoys on Blossom Rock, Anita Rock, on the shoals on the N. N. W. part of the harbor, and on the bank making out from Belona's beach. High water at Yerba Buena or San Francisco full and change 10 hours 34 minutes. Rise of spring tides 9 feet, neap tides 3 feet. Latitude of the Fort 37 deg. 48 min. 30 sec. N.; Longitude 122 deg. 27 min. 24 sec. W. Variation 15 deg. 36 min. E.

EDW. A. KING, *Harbor Master.*

SEPTEMBER 27, 1849.

REGULATIONS FOR THE HARBOR AND PORT OF SAN FRANCISCO.

ART. 1st. On the arrival of Merchant vessels at the port of San Francisco, a proper berth will be pointed out to the masters thereof, by the Harbor Master, when he boards them; and no master of a Merchant vessel shall shift his berth without permission from the Harbor Master, unless in case of extreme emergency, when he must report his having done so as early as possible at the office of the Harbor Master.

ART. 2d. Should it be the intention of a master of a vessel to discharge or receive on board any considerable quantity of merchandise, a berth will be pointed out to him as close to the landing places as the safety of the vessel and other circumstances will permit.

ART. 3d. After a proper berth has been pointed out, the master will then moor his vessel with two bower anchors across the tide, with thirty-five fathoms chain cable, with buoys attached in summer months, and fifty fathoms from the hawserhole in winter. December, January, February and March to be considered the winter months.

ART. 4th. If any vessel properly moored in the harbor shall have her anchors or cables over-laid by any other vessel in anchoring or mooring, the master or person having the care or direction of such last mentioned vessel, shall immediately, or as soon as may be after application made to him by the party aggrieved, cause the said anchor or cable so overlaying to be taken up and cleared.

ART. 5th. When any Merchant vessel may be lying in a berth convenient for discharging, and she shall have completed her unlading or lading, such vessel shall, at the request of the Harbor Master, remove to a place designated, should her berth be required by any other vessel which may desire to load or discharge.

ART. 6th. Merchant vessels arriving with powder on board, must on arrival, report the same to the Harbor Master, in order that a secure berth may be pointed out.

ART. 7th. No ballast will be allowed to be thrown overboard. Any ballast which may be wanted to discharge, by application to the Harbor Master, a place of discharge will be designated, and any vessel requiring ballast, instructions will be furnished on application.

ART. 8th. All difficulties arising between ships relative to the foregoing rules, shall be settled before the Harbor Master.

ART. 9th. Disobedience to the orders of the Harbor Master, in the discharge of his duty will subject the offender to a fine of fifty dollars, to go towards the Hospital Fund, of the town of San Francisco.

ART. 10th. After mooring, ships must rig in jib and flying jib-booms.

ART. 11th. Forty-eight hours notice to be given at the Custom House before clearing.

ART. 12th. No fire arms to be discharged in the Harbor under penalty of Article 9th.

APPROVED:—

THOS. AP C. JONES, *Comdr. U. S. N.*

EDW. A. KING, *Harbor Master.*

Next to the port of San Francisco, in maritime importance, we must put the Bay of Monterey, with its two ancient towns of Monterey and Santa Cruz lying on the opposite shores of the bay. At present the mining operations being confined to the north of the Bay of San Francisco, the whole commerce is concentrated in that port; but ere long they will go farther south, and then the town of Monterey will be likewise benefitted by the trade with the mines, as its facility of communicating by land with all the points south of San Francisco promises it.

Monterey was, and is, as yet, the capital of the country, contains about two thousand inhabitants, principally natives and old established families of foreigners, who have not neglected to improve opportunities of making themselves rich. The soil in the neighborhood is good—the climate a hundred per cent. better than that of San Francisco. The situation of the town is very picturesque.

On the North side of the Bay lie the Mission and town of Santa Cruz, with a rich soil abounding in water and timber, as in its neighborhood, in the mountains, there are six saw-mills in operation. Building timber is easily and cheaply obtained here; land for building lots can be also procured at moderate prices. It is an excellent spot for mechanics to settle upon, as the sea offers them facilities for sending the produce of their hands into any portion of the country, while at the same time living is cheap, for everything in the way of provisions can be produced in the town.

Pueblo de San Jose is another old settlement, and has more than a thousand inhabitants within its jurisdiction, and is growing rapidly. By its position, in a magnificent valley, seventy miles in length at the head of the Bay of San Francisco, approachable by water to vessels as large as brigs, being a thoroughfare between the North and South of the country, possessing a rich soil, a mild and salubrious climate, beautiful landscape, and every facility for cheap and comfortable living, it cannot but grow rapidly; and we have no doubt that in a few years, when California shall be a little more settled and organized, it will become the seat of the State Government, being a more central and accessible point from all parts of the country than Monterey.

The town of South San Francisco, about three miles South of the city of San Francisco, possesses the same advantages of the harbor as the latter, for all classes of vessels, with the superiority of being more sheltered from the prevailing winds and of having an abundant supply of water, not only for the use of its inhabitants, but for the shipping. The same depth of water extends along the shore from one town to the other. The country is picturesque, the site of the town is more regular than that of San Francisco; it commands a quarry of stone suitable for buildings, and it lies on the road from San Francisco to Pueblo de San Jose. Had the original settlers of San Francisco exercised their judgment before settling on that windy spot, they would have put their houses on the site of South San Francisco.—We have no doubt but it will soon have its share in the commerce of the Bay.

Benicia is a town situated on the north side of the strait of Carquinez, with great depth of water; ships can discharge there close to the shore without the aid of wharves. It met with the approbation of naval and military officers as a good spot for a naval and military depot; and we understand that it has been recommended by the same to the government

for the erection of government buildings, upon its site. It has a ferry boat which plies across the strait, and thus keeps the two portions of the country in constant communication, benefitting the public while it remunerates the efforts of the enterprising owners of the town.

Martinez is a projected town on the opposite side to Benicia, and of which we have already spoken above.

Suisun is a town just springing up into existence on the north side of the bay of Suisun and right bank of the Sacramento; it is very advantageously situated for both commercial and agricultural purposes. It is eighty-five miles distant from San Francisco and fifty from Benicia; it has a rich soil and is well wooded; it possesses good water in abundance, and building stone is found in the neighborhood. The depth of water is sufficient to admit barks to lie close to the shore. Its importance soon will be felt when the beautiful neighborhood of the Clear Lake shall be settled by enterprising farmers and miners. Its climate is mild and healthy.

Sacramento City, once the exclusive property of the well known and remembered by every stranger who appreciates hospitality, Capt. J. A. SUTTER, is situated on the east bank of the Sacramento river; vessels of seven hundred tons are lying close to the shore in the stream. To show its growth and importance we need only state that on the first of May last it contained about fifteen houses and tents, the whole business with the mines being done at the Fort, which is about two miles distant from the city, and on the first of August it had more than a hundred houses and numerous tents, probably comprising about five thousand souls.

The town of Boston is situated in the fork made by the Sacramento and the American rivers in their junction, and its site extends along the shores of both of them. Its situation is a little elevated and free from inundation; the land is rich and well wooded; the same class of vessels that comes up to Sacramento City, can lie here with equal ease, being but a mile above the latter; the road that crosses the American river and leads to the Feather river, the Bear Creek and the Yuba goes through the town. It is laid out on the old site of an Indian *Rancheria*, a portion of which they still occupy.

The town of Washington is very beautifully situated on the same bank with Sacramento City, from which it is only nine miles distant up the river. The spot is well selected for an inland town where agriculture and trade

with the mines must flourish; it is well provided with timber and a brook runs through it. The river craft and a steamboat run up to it.

Springfield is a town in project, close to the town of Vernon.—Vernon is at the junction of the Feather river with the Sacramento. It is in the vicinity of many “diggings,” with which it carries on a lively trade. At any season of the year there is four feet of water in the river, but for eight months the depth of water is eight feet.—River craft and a steamboat are constantly plying up to this place. Its vicinity is a rich and well wooded agricultural country.

The town of Sutter, situated two miles below, and on the same bank with Sacramento City, possesses the same advantages of the river and soil as the latter. It has already several houses put up.

New York of the Pacific, at the mouth of the San Joaquin, has been already spoken of above.

Stockton is a spot happily selected for an inland town of great importance, and already its present augurs well for the future.—Situated high up on the San Joaquin, accessible to river craft at all seasons of the year, cut through in different directions by four channels communicating with the river, and admitting close to the shore vessels of the class of barks and brigs, of which thirteen are moored there at this very moment, surrounded by rich soil and extensive wood land, contiguous to numerous rich “diggings,” Stockton offers great advantages to a new settler, and many have already availed themselves of them. Its proprietor, Mr. Chas. M. Weber, by his liberal provisions for the public wants of the town, cannot fail to accelerate its prosperity.

The town of San Joaquin, situated on the river of the same name, at the highest point to which river steamers can come up at all seasons of the year, in the neighborhood of the rich mines of the Merced and Mariposa, to which a good waggon road can be easily made, offers superior advantages to settlers; its situation is picturesque, as it is on a rising ground; it is abundantly supplied with good water and grass all the year through, and its climate is salubrious. Its geographical position to the surrounding mining district guarantees it the command as a trading post, to at least one third of the gold region.

END.



ERRATA.

Second line in the Preface for Regions read Region.

Page 6th line 11th, for Mission, San Luis Obispo read Mission of San Luis Obispo.

Page 7th, line 21st, for los Angelos read los Angeles.

” 11th ” 17th for percolated read percolated.

” 11th ” 20th for requires read require.

” 12th ” 10th for Amerieas read American.

” 12th ” 11th for gets read get.

” 12th ” 11th for him read his.

” 13th ” 20th for Mahahoe read Mahahve.

” 14th ” 19th for Martincr read Martinez.

” 14th ” 20th for Carquines read Carquinez.

” 14th ” 22rd for California—and, read California and.

” 15th ” 6th for masses of sand-stone; read Masses of sand-stone—.

” 16th ” 7th for unweary read unaware.

” 19th ” 11th for wishes read wish.

” 19th ” 13th for passes read pass.

” 20th ” 32nd for on perpetual read of perpetual.

” 23rd ” 11th for are no longer read exist no longer.

” 23rd ” 20th for buildings ruined read buildings were ruined.

” 27th ” for whicr read which.

” 29th ” 6th for minlng read mining.

” 31st ” for archieves read archives.

” 33rd transpose the—after *words* to alter *plain fact*—.

” 31th for knife and, read knife, iron spoon and.

” 38th for Saleratus read Salæratuſ.

” 29th for lauch read lanch.

” 29th for Tuolomy read Touolomy.

” 29th for Fether river read Feather river.

” 40th for *Yuber* or *Ynba* read always Yuba.

” 42nd for Wever’s Creek read Weber’s Creek.

” 46th for The tim read time.

” 58th for advice that is read advice which is.

” 58th for at the *bottom* of the Bay read at the *head* of the Bay.

Transcriber's Notes

Punctuation, hyphenation, and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks retained.

Ambiguous hyphens at the ends of lines were retained.

The [ERRATA](#) at the end of the book have been applied to this etext and to other occurrences of the same text. Some of the ERRATA's page references were incorrect, but the changes were found and made. Some of the corrections in the ERRATA may be errors, but still were applied.

Text uses both "deposit" and "deposite".

Page [21](#): "perseverence" was printed that way.

Page [22](#): "alloted" was printed that way.

Page [33](#): "Dyonius" was printed that way.

Page [35](#): "cresent" was printed that way.

Page [38](#): The last column in the table used both periods and commas.

Page [39](#): "conscienciously" was printed that way.

Page [43](#): "hireing" was printed that way.

Page [48](#): "soking" was printed that way.

Page [50](#): "cristalization" was printed that way.

Page [51](#): “exiliarating” was printed that way.

Page [53](#): “dilema” was printed that way.

Page [55](#): “Sausolito” was printed that way.

*** END OF THE PROJECT GUTENBERG EBOOK CALIFORNIA AS
IT IS, AND AS IT MAY BE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™

License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format

other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.